IN THE NATIONAL COMPANY LAW TRIBUNAL: NEW DELHI
COURT – IV

Item No. 413
CA(CAA)/09/ND/2023

IN THE MATTER OF:

Mudrika Fiscal Services Private Limited And Others ... Applicant

And

Pacific Development Corporation Limited & Another's

Order under Section 230-232.

Order delivered on 02.05.2023

Coram:
MR. P.S.N. PRASAD
HON'BLE MEMBER (JUDICIAL)
DR. BINOD KUMAR SINHA,
HON'BLE MEMBER (TECHNICAL)

PRESENT:

For the Applicant : Mr. Sandeep Bhuraria, Mr. MonishSurendran, Mr. Parijat, Ms. Nishtha Grover, Mr. Arinjay, Advs.

ORDER

Heard the submissions made by the Learned Counsel for the petitioner. Learned Counsel for the petitioner has submitted that they are seeking dispensation of meeting of shareholders as well as secured creditors. With regard to unsecured creditors, except transferee company all other companies unsecured creditors have given their consent which is as per the limits prescribed under law. Counsel has further submitted that meeting of unsecured creditors of the transferee company has to be convened. The Court Commissioner's Report is taken on record. Order in this matter is reserved.

Sd/-
DR. BINOD KUMAR SINHA
MEMBER (TECHNICAL)

Sd/-
P.S.N. PRASAD
MEMBER (JUDICIAL)

Mukesh